



GE VERNOVA

ADMS

16.25.1

GDPR Letter of Applicability

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Change History

Date	Change Description
Jun 7, 2023	This is a new document for ADMS 3.16.
Oct 20, 2023	ADMS 16.1.0: The product version numbering has changed. The prefix '3' is no longer included in the version numbering for ADMS.
Apr 24, 2024	ADMS 16.7.0: Updated document format and styling.

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1. GDPR Letter of Applicability

This letter describes the applicability of the European Union's (EU) General Data Protection Regulation (GDPR) to the Standard Product Version^[1] of the GE Vernova product and its release listed above.

In the following sections, an "[X]" indicates the option that applies to this release of the product.

1.1. Processing of Personal Data

Product Owner/Operator's Employees and/or Contractors Personal Data

Examples would likely include "jane.doe@utility.com," "EMS Operator," "Business Cell: 123-456-7890," etc.

See [Product Owner/Operator's Employee and/or Contractor Personal Data](#) for what Product Owner/Operator's Employees and/or Contractors Personal Data is processed, if any.

Personal Data is required to be processed by this release of the product for normal, expected operation and use of the product:

☒ Some
☐ No

Personal Data may optionally be configured to be processed by this release of the product as part of normal, expected operation and use of the product:

☒ Some
☐ No

Populace Personal Data

Examples would likely include "jane.doe@utility.com," "EMS Operator," "Business Cell: 123-456-7890," etc.

See [Populace Personal Data](#) for what Populace Personal Data is processed, if any.

Personal Data is required to be processed by this release of the product for normal, expected operation and use of the product:

☒ Some
☐ No

Personal Data may optionally be configured to be processed by this release of the product as part of normal, expected operation and use of the product:

☒ Some
☐ No

If "Some" is selected for any of the above, GE Vernova believes that the product release may be subject to GDPR.

Please review the sections below for information on what Personal Data is processed by this release of the product, along with your specific implementation of the product, to determine the applicability of GDPR to your product environment.

1.2. Privacy by Design

GE Vernova continues to enhance, sell and support a number of mission-critical products that, at their core, were originally designed, developed, and released 10-20 years ago, before cyber security and personal data privacy were concerns in critical infrastructure industries and OT systems. For these products, where Privacy by Design was not considered as part of the initial design and development or during subsequent releases to date, data privacy will largely need to be accomplished through the use of organizational and defense-in-depth measures^[2] taken by the Product Owner/Operator.

GE Vernova has instituted a Privacy by Design development policy that applies to all development going forward. As subsequent releases of existing products pass through this new process, our intent is that additional technical measures to enhance data privacy are considered and implemented within future versions of these products.

All new products will be subject to this Privacy by Design development policy from initial release, with strict requirements on documenting and recording Privacy by Design considerations during product design and development.

The tables below inform you of what Privacy by Design measures, if any, were taken during the design and development of this GE Vernova product, including its original release through this release.

Original Product Release Timeframe

The original version of this product was released:

- ☐ after 25 May 2018
- ☐ 0 – 3 years prior to 25 May 2018
- ☒ more than 3 years prior to 25 May 2018

Privacy by Design

As part of the original design, Privacy by Design:

- ☐ was considered
- ☒ was not considered
- ☐ was not required (since no personal data was processed)

During development of a previous release of the product, Privacy by Design:

- ☒ has been considered
- ☐ has not been considered
- ☐ was not required (since no personal data was processed)

During development of this release of the product, Privacy by Design:

- ☒ was considered
☐ was not considered
☐ was not required (since no personal data was processed)

For this product, a post-release Privacy by Design review:

- ☒ has been completed
☐ is in progress
☐ has not been started

Note

A post-release Privacy by Design review is only relevant for products released prior to 25 May 2018 as the product would have existed before GDPR.

Closing

GE Vernova understands that the transition to GDPR will not be easy for our customers and we remain committed to helping you through this transition, as well as providing new products and/or enhancements to existing products that will make compliance with GDPR easier in the future.

1.3. Product Owner/Operator's Employee and/or Contractor Personal Data

Personal Data	Required / Optional / Not Processed	Why is it Processed?	Where is it Stored?	How is it Protected?
Birthdate	Not Processed			
Demographic Information	Not Processed			
Email Address (Business)	Optional	Internal Notification Subscription. Used for user logon and to send notifications.	PostgreSQL	It is the Utility's responsibility to keep this data protected on a secure server. It is the Utility's responsibility to encrypt PostgreSQL data.
Email Address (Personal)	Optional	Internal Notification Subscription. Used for user logon and to send notifications.	PostgreSQL	It is the Utility's responsibility to keep this data protected on a secure server. It is the Utility's responsibility to encrypt PostgreSQL data.
Emails	Not Processed			
Employer	Not Processed			
Gender	Not Processed			
Home Address	Not Processed			

Personal Data	Required / Optional / Not Processed	Why is it Processed?	Where is it Stored?	How is it Protected?
ID Number (Business, as issued by Employer)	Required	Used by operators to help identify appropriate crew members.	Stored in the Crew Model, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Crew Model can be encrypted using AES256 CBC.
ID Number (Personal)	Not Processed			
IP address associated with a person/user, as opposed to a server	Not Processed			
Job Title	Optional	Can be used by operators to help identify appropriate crew members.	Stored in the Crew Model, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Crew Model can be encrypted using AES256 CBC.
Name (First)	Optional	Can be used by operators to help identify appropriate crew members.	Stored in the Crew Model, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Crew Model can be encrypted using AES256 CBC.
Name (Last)	Optional	Can be used by operators to help identify appropriate crew members.	Stored in the Crew Model, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Crew Model can be encrypted using AES256 CBC.
Password	Required	Login Credentials	Permit Db, Active Directory	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access.
Physical Location (Current)	Optional	The location of crews can be received from Work Force Management and displayed in the UI. This gives operators the ability to identify the crew closest to a given location.	In memory	The data is only available in memory; it is not persisted.
Physical Location (History)	Not Processed			
Security Credentials	Not Processed			
Spoken Languages	Not Processed			

Personal Data	Required / Optional / Not Processed	Why is it Processed?	Where is it Stored?	How is it Protected?
Telephone Number (Business)	Optional	Can be used by operators to help identify appropriate crew members. Can be used by internal notification to send text messages.	Stored in the Crew Model, which is a file stored on the OMS server. Internal Notification data is stored in PostgreSQL.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Crew Model can be encrypted using AES256 CBC.
It is the Utility's responsibility to encrypt PostgreSQL data.				
Telephone Number (Personal)	Not Processed			
Username	Required	Login Credentials	Permit Db, Active Directory	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access.

1.4. Populace Personal Data

Personal Data	Required / Optional / Not Processed	Why is it Processed?	Where is it Stored?	How is it Protected?
Birthdate	Not Processed			
Demographic Information	Not Processed			
Email Address (Business)	Not Processed			
Email Address (Personal)	Not Processed			
Emails	Not Processed			
Employer	Not Processed			
Gender	Not Processed			
Home Address	Not Processed			
ID Number (Business, as issued by Employer)	Required	Can be used by operators to identify utility customers. Can be used by the Call Entry tool to enter calls.	Stored in the Customer File, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Customer File can be encrypted using AES256 CBC.
ID Number (Personal)	Not Processed			

Personal Data	Required / Optional / Not Processed	Why is it Processed?	Where is it Stored?	How is it Protected?
IP address associated with a person/user, as opposed to a server	Not Processed			
Job Title	Not Processed			
Name (First)	Optional	Can be used by operators to identify utility customers.	Stored in the Customer File, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Customer File can be encrypted using AES256 CBC.
Name (Last)	Optional	Can be used by operators to identify utility customers.	Stored in the Customer File, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Customer File can be encrypted using AES256 CBC.
Password	Not Processed			
Physical Location (Current)	Not Processed			
Physical Location (History)	Not Processed			
Security Credentials	Not Processed			
Spoken Languages	Not Processed			
Telephone Number (Business)	Optional	Can be used by operators to contact utility customers.	Stored in the Customer File, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Customer File can be encrypted using AES256 CBC.
Telephone Number (Personal)	Optional	Can be used by operators to contact utility customers.	Stored in the Customer File, which is a file stored on the OMS server.	It is the Utility's responsibility to keep this data protected on a secure server. The server should have restricted access. The Customer File can be encrypted using AES256 CBC.
Username	Not Processed			

1.5. Glossary

Term	Definition
Personal Data	Any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural or social identity of that natural person.
Populace	Those customers of GE Vernova's customer (that is, the power utility or telco's customers) that are consuming the power or services the utility or telco provides.
Post-Release Privacy by Design review	A process for products/versions that have already been released that consists of reviewing what personal data is currently processed by a product, why that personal data is required/optional, that the product is only using the personal data for legitimate, intended purposes, and reviewing how the personal data is currently protected within that product.
Privacy by Design	The consideration of "appropriate technical and organisational measures for ensuring that, by default, only personal data which are necessary for each specific purpose of the processing are processed" AND "appropriate technical and organisational measures, such as pseudonymisation, which are designed to implement data-protection principles, such as data minimisation, in an effective manner and to integrate the necessary safeguards into the processing" AND "the right to be forgotten" during product design and development, specifically in consideration of GDPR and its requirements.
Process (Processes, Processing)	Any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organisation, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction.
Product Owner/Operator	A GE Vernova customer using a GE Vernova product, typically a power utility, telco, market operator, etc.
Product Owner/Operator's Employees and/or Contractors	Those people performing work directly for, or on behalf of, GE Vernova's customer using the GE Vernova product.
Standard Product Version	The GE Vernova product without any specific customizations or modifications made for a given customer. (The practice of customizing or modifying the standard product is common in certain markets, such as the electric grid Transmission segment.)

[1] If your product has been customized or modified, please review the use of personal data by the customizations/modifications with the team who authored and implemented the customs/modifications.

[2] Such as those outlined in the ISO 27k family, CIS Controls and Benchmarks, Australia's Top 4 and Essential Eight, NIST SP 800-53, etc.